



Siror & another v Sugut & 12 others (Environment and Land Miscellaneous Application 7 of 2023) [2025] KEELC 5 (KLR) (15 January 2025) (Ruling)

Neutral citation: [2025] KEELC 5 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT KITALE
ENVIRONMENT AND LAND MISCELLANEOUS APPLICATION 7 OF 2023
FO NYAGAKA, J
JANUARY 15, 2025**

BETWEEN

MICHAEL BETT SIROR 1ST APPLICANT

BETHAM INVESTMENT CO LTD 2ND APPLICANT

AND

**STEPHEN SUGUT & 12 OTHERS & 12 OTHERS & 12
OTHERS INTERESTED PARTY**

RULING

1. By an Application dated 09/10/2023, the Applicants moved this Court under the provision of Section 1A, 1B and 27 of the Civil Procedure Act, 2010, Order 42 Rule 6 and Order 50 Rule 4 of the Civil Procedure Rules and Rule 11(1) and (2) of the Advocates Remuneration Order and all other enabling provisions of the law. They sought the following prayers;
 1. ...spent.
 2. That leave be granted to the applicants herein to file miscellaneous reference application against the Ruling of the Deputy Registrar delivered 13th December, 2022.
 3. ...spent
 4. That the decision of the Deputy Registrar as evidenced by in the Ruling delivered on 13th December, 2022 in respect to item number 1 in the 1st, 3rd, 4th to 11th and 13th Interested Parties Bill of costs dated 7th July, 2020 to be set aside and taxed afresh by this Honorable Court.
 5. That the costs of this application be provided for.
2. The Application was premised on 15 grounds which are summarized as follows. The Deputy Registrar delivered a Ruling in respect of the Bills of Costs of the Interested Parties who are mentioned in



the prayers of the Application. The Bills were taxed on 13/12/2022 at Kenya Shillings 631,310/= in absence of the applicants and without proper notice to them. The Applicants being aggrieved by the decision filed an objection to Item 1 of the Ruling on 28/12/2022 and out of abundance of caution, they filed the Application herein, even without reasons on the taxation of the bill of costs being given. The Applicants did not have the benefit of reading the whole Ruling and will seek leave of this Honorable Court to object to any other items awarded unfairly. The Applicants learned of the Ruling on 28/12/2022 and issued a letter of objection the same day. According to the computation of time the time within which to write a letter to the Deputy Registrar to request for reasons had not elapsed as per the provisions of Order 50 Rule 4 Civil Procedure Rules. They cited the Rule verbatim.

3. They contended that to date no reasons had been given by the Deputy Registrar. The taxation in the sum of Kenya Shillings 631,310/= was overly exaggerated, oppressive and unreasonably high. The Respondents were Interested Parties in Petition No. 5 of 2017 which was a contest between the Applicants and the Attorney General. The applicable law on instructions fees was not followed hence the provisions of Section 6 Rule (1)(J) of the Advocates Remuneration Order 2014 and Section 26(1) and (2) of *the Constitution* of Kenya (Protection of Rights and Fundamental Freedoms) Practice and Procedure Rules 2013 was offended. Schedule 6 Rule (1)(J) of the Constitutional Petitions and Prerogative Orders, 292. Kenya Subsidiary Legislation, 2014 provides that to present or oppose an application for a constitutional or prerogative orders where the matter is not complex or opposed a reasonable sum of but not less than 45,000/= , and where the matter is opposed the fee may be any reasonable one but not less than 100,000/=. The decision of the Deputy Registrar to tax base some at Kenya Shillings 500,000/= as instructions fees while the Remuneration Order provided for a range between Kenya Shillings 45,000/= and 100,000/= was unjust, unfair and prejudicial to the Applicants. The Deputy Registrar was wrong in awarding costs for hearings when the matter proceeded solely by way of affidavits. The interested parties had since obtained a certificate of costs in readiness to execute and unless a stay of execution was granted the Applicants stood to suffer irreparably. It was only fair that the stay of execution does issue pending the hearing of this reference.
4. The Application was supported by the Affidavit of one David Kipchumba Siror sworn on 11/10/2023. He repeated the contents of the grounds in support of the Application but in deposition form. To the depositions he added as annexure DKS-1 a copy of the letter dated 28/12/2022. He prayed that the application be allowed.
5. The Respondents opposed the Application through a Replying Affidavit sworn by one Peter Kiarie Ndarwa on 24/01/2024. He deposed that the Ruling on taxed costs was delivered on 13/12/2022 yet the instant Application indicated that it was a reference from the taxation. But in addition, the prayer (c) sought leave of the court to file a reference against the ruling. Further, no notice of objection to the taxation was filed. A Notice of Objection constituted pleading which must be paid for. The letter dated 28/12/2022 was not a pleading. The deponent had confirmed from the court record that no court fees had been paid over the same. The letter was also filed outside of the statutory period as provided for under Rule 7 of the Advocates Remuneration Order and without leave of the court. That Order 50 Rule 4 of the Civil Procedure Rules did not apply to the timeframe stipulated by Rule 11(1) and (2) of the Advocates Remuneration Order hence the Application was incompetent and bad in law.

Submissions

6. The Application was disposed of by way of written submissions. The Applicants submitted through a written argument dated 15/02/2024. They started by summarizing the application and giving the background and relevant facts in addition to the introduction. They listed three issues for determination.



7. The first one was whether the provisions of Order 50 Rule 4 of the Civil Procedure Rules, 2010, regarding when in computing time it does not run between 21st December and 13th January of every year apply. On this they argued that on 13/12/2022 the Deputy Registrar rendered a decision on the Interested Parties and Party Bill of Costs dated 07/07/2022. On 28/12/2022, the applicants became aware of the ruling and, being dissatisfied with the Registrar's decision, promptly filed a formal objection challenging item number one (1) thereof. Then they initiated the instant application out of abundance of caution, even in absence of reasons, regarding the accusation of the bill of costs, particularly item 1. They sought opportunity to contest any other items also deemed unfairly awarded. It was their contention that Order 50 Rule 4 of the Civil Procedure Rules extends the period between 21st December and 13th January of the following year from computation of time hence essentially extends the deadline for taking certain actions by excluding the specified period from the calculation of time. They stated that time started running from 14/12/2022 and elapsed on 20/01/2023. Thus, since the Objection was filed on 28/12/2022 it was within the time contemplated under Order 50 Rule 4.
8. They cited Section 57(b) of the *Interpretation and General Provisions Act* which is to the effect that in computing time for the purpose of any written law, if the last day of the period is Sunday or a public holiday or official non-working day, the period shall include the next following day not being an excluded day. They relied on the case of *Slok Construction Limited versus Erick Odhiambo Odongo* [2022] eKLR; *Kezziah Stella Pyman & 2 Others v. Paul Mwololo Mutevu & 8 Others* [2013] eKLR; and *Francis Likhabila v. Barclays Bank of Kenya* [2020] eKLR from which they quoted extensively (and this Court need not reproduce the two-page quote therefrom). They argued that the dates in issue be excluded.
9. This Court is of the view that the first issue forms the backbone of the entire application before me. Thus, its determination will pave way for the consideration of the next two issues which they listed. These were, whether the taxing officer rightly exercised his discretion in determining and taxing off instructions fees. They extensively argued about the quantum of the instruction fees in the matter. The court will consider the submissions if the first issue succeeds. They also raised the issue regarding whether stay of execution should be granted pending the determination of the instant Reference. The Court shall also take into account the submissions upon the conclusion and determination of the first issue which is basically regarding the competence or otherwise of the Reference herein.
10. The Respondents filed their written submissions dated 21/03/2024 on the 11/04/2024. They summarized the Application and set out three issues for determination. The first one was whether the letter dated 28/12/2023 was properly on the record and whether it amounted to a notice of objection.
11. On this they submitted that Rule 11 of the Advocates Remuneration Order provided for filing of a notice of objection to items of the decision of taxation by the taxing officer. The person giving the notice of objection to items should do so within 14 days. The notice should be a formal one or in writing. They submitted that the notice of objection should have been filed by 27/12/2022. The Applicant was supposed to seek an extension of time as provided by sub-Rule 4 of Rule 11 of the Advocate Remuneration Order before filing the letter dated 28/12/2022. They submitted that the letter dated 28/12/2022, which the Applicants referred to as a notice of objection was improperly on record and filed out of time and without leave of the court, hence it be rejected. As things stood, there was no objection to the taxation of 13/12/2022. The filing of the notice of objection was made without being paid for and there was no evidence to show it had actually been paid for. Lastly, they submitted that Order 50 Rule 4 of the Civil Procedure Rules did not apply to with regard to time for filing of the notice of objection as provided for under the Advocates Remuneration Order. They relied on the case of *Josphat Kirigia Aburi v Cooperative Bank of Kenya* [2020] eKLR in which the court agreed with



an earlier decision that Order 50 Rule 4 of the Civil Procedure Rules did not apply to the timelines stipulated in the Advocates Remuneration Order.

12. The second issue was whether leave should be granted to file Miscellaneous Reference Application when the instant application is titled Miscellaneous Reference Application. On this they submitted paragraph 35 of the Applicants of submissions they argued that being aggrieved by the Ruling delivered on 13/12/2022, they filed the Reference and present application. They submitted that Rule 11 of the Advocates Remuneration Order clearly stipulated the procedure to be followed by an aggrieved party when a taxation had been made. Further, Rule 11(2) of the Advocates Remuneration Order stated that an aggrieved party may, within 14 days of the receipt of reasons from the taxing officer for the decision, apply to the judge for by Chamber Summons setting out the grounds of his objection. He submitted further that an aggrieved party could only file a Reference to the Judge upon being supplied with reasons by the taxing master. He submitted also that since the attachment (annexture) stated that they had never been supplied with the reasons for their taxation, then there was no Reference to be filed. And again, no leave had been granted to file the Reference at this point.
13. The third issue was whether the court should grant a stay of execution and pending the hearing and determination of the Reference. On this they submitted that there was no valid notice of objection filed. Consequently, there would be no basis to consider the grant of stay of execution in the matter herein. Further, it was over one year since the Ruling of the taxing officer was delivered hence the Application was filed with inordinate delay.

Issue, Analysis And Determination

14. I have considered the application, the law and submissions by the parties. The issues for determination are, whether the Reference herein is properly before the court, and whether the Applicants should be granted leave to file a Reference against the Ruling delivered on 13/12/2022. The third one is whether there should be stay of execution pending the determination of the Miscellaneous Reference Application herein. The fourth is the Ruling made on 13/12/2022 in respect of items No. 1, 3rd, 4th to 11th and 13th should be set aside and taxed afresh. The fifth one is who to bear the costs of the application.
15. I begin by considering the fifth issue which is simple. This Court is of the view that it is so because it is a prayer on the merits of the Reference, that is to say, the Applicants seek to set aside the taxation of the items specified yet they have neither been granted leave to file a Reference nor have they satisfied the Court whether or not the Reference is properly before it. In essence the Applicants put the cart before the horse. Horses pull carts: they do not push them lest there will be injury and no work done by the animals.
16. In the case of Nicholas Kiptoo Arap Korir Salat v The Independent Electoral and Boundaries Commission & 7 Others [2014] eKLR, the Supreme Court stated in part;

“By filing an appeal out of time before seeking extension of time and subsequently seeking the court to extend time and recognize such “an appeal” is tantamount to moving the court to remedy an illegality. This Court cannot do.

To file an appeal out of time and seek the court to extend time is presumptive and inappropriate. No appeal can be filed out of time without leave of the court. Such a filing renders the “document” so filed a nullity and of no legal consequence”
17. In essence the Supreme Court held in the case above cited, and rightly so, that first things should be attended to first. Where one is required to seek leave of the court first before filing a document, but he



proceeds to do so without taking that step, the document is a nullity: it is illegally before the court. By the same token, where a party is required by law to seek leave of the court and be granted the same before making a prayer or seeking a relief, any prayer or relief sought before the leave is granted is premature and incompetent. The Court must frown at it and strike it out. This Court does the same by refusing the prayer to consider the merits of the taxation impugned as to set it aside before leave is granted to the Applicants or before the Reference was deemed properly filed and/or before the Reasons for the taxation were given by the Deputy Registrar. This is because the procedure laid down in Rule 11 of the Advocates Remuneration Order is plainly straightforward and conditions the parties aggrieved with the decision of the Taxing Master on what to do. The Applicants did not do it before making the instant prayer.

18. The next issue is the first one, which is whether the Reference is properly before the Court. Paragraph 11 of the Advocates Remuneration Order provides:-

“Objection to decision on taxation and appeal to Court of Appeal

1. Should any party object to the decision of the taxing officer, he may within fourteen days after the decision give notice in writing to the taxing officer of the items of taxation to which he objects.
 2. The taxing officer shall forthwith record and forward to the objector the reasons for his decision on those items and the objector may within fourteen days from the receipt of the reasons apply to a judge by chamber summons, which shall be served on all the parties concerned, setting out the grounds of his objection.
 3. Any person aggrieved by the decision of the judge upon any objection referred to such judge under subsection (2) may, with the leave of the judge but not otherwise, appeal to the Court of Appeal.
 4. The High Court shall have power in its discretion by order to enlarge the time fixed by subparagraph (1) or subparagraph (2) for the taking of any step; application for such an order may be made by chamber summons upon giving to every other interested party not less than three clear days' notice in writing or as the court may direct, and may be so made notwithstanding that the time sought to be enlarged may have already expired.
19. The starting point on this issue is that the Applicant sought leave of the Court to file a Reference against the decision of the taxing master. Clearly, the import of the prayer is that the Miscellaneous Reference was filed without leave of the Court where there was need of grant of one as a condition precedent. The Applicants stated that they filed the instant application upon learning of the delivery of the ruling on taxation on 28/12/2022. Further, they did so a precautionary step pending the giving of the reasons for the decision, reason for which they applied through a letter dated 28/12/2022.
20. Regarding this step, the applicant submitted that they did so even in absence of reasons for determination. On their part the Respondents submitted that the Applicants ought to have instead sought leave to request for reasons outside of the time granted to them, which lapsed on 27/12/2022.
21. Paragraph 11 of the Advocates Remuneration Order which is cited above provides that in the event a party does not comply with the timelines for request for reasons, they should move the Court under Sub-paragraph 4 for it to extend the time through a Chamber Summons application to be heard upon service on all parties at least three clear days or such time as the court may give.



22. The Applicants having not filed the Objection within 14 days of the ruling did not seek an extension to file them. Instead, they filed a Reference and sought leave of the court to file the Reference against the taxation. It is the Court's humble learned view that these two prayers contradicted each other. One cannot file a Reference against a decision and purport at the same time to seek leave to file a Reference. It is either he has filed a Reference and seeks leave to validate it, which still would be unprocedural and nullity in law, as per the Nicholas Kiptoo Arap Salat case (*supra*) or he first seeks leave of Court to file the Reference and if granted he files it.
23. It is worth noting that the leave the Applicants ought to have sought, if they were convinced that they needed one, was for extension of time to file Objection to the taxation or several items thereof. As it stands, the Reference is against a decision with no reasons given for the determination of the items challenged. In essence, therefore, the court does not have any basis for determining the Reference because the reasons by the Taxing Master form the basis for the Court determining whether they merit or not.
24. Lastly, if indeed, as the Applicants argue they sought for reasons for the determination by the taxing master in time, then there is neither need for the Reference to be filed as of now since reasons have not been given, and that would mean that execution of the taxed costs would be premature nor any need for leave of the Court to be granted to file Reference out of time because fourteen days from the date of the reasons, unless there was reasons given simultaneously with the delivery of the decision, have not commenced or lapsed. Issuance of the Objection in time stops time from running until fourteen days after the reasons are given. Thus, the prayer for leave to file the Reference is not merited. It fails.
25. The finding above turns this Court to the second issue, which is whether this Court should grant leave to file a Reference against the Ruling delivered on 13/12/2022. The applicants contended that they needed leave to file a reference against the decision of the taxing master as was given on the 13/12/2022. Even as they did that, their contention was that upon knowing that there was a decision made on the material date they showed a notice of objection dated 28/12/2020. It was their contention that the notice was issued in time and that in terms of Order 50 Rule 4 of the Civil Procedure Rules time stopped running between 21/12/2022 and 13/01/2023. They stated that for that reason.
26. Paragraph 11 of the Advocates Remuneration Order provides, as explained above, that once a decision is given by the taxing master, an aggrieved party should issue, within fourteen days, a notice of objection to the items he or she opposes. The taxing master shall give the reasons for determination to the party requesting. The party requesting shall within 14 days of the receipt of the reasons apply by Chamber Summons to the judge stating his objections. This is the filing of the Reference.
27. Granted that the argument by the applicants that they issued the notice of objection in time is correct, then there was no need for them to apply for leave to extend the time to file the Reference because the date of issuance of the notice of objection, according to them as they submitted, fell between 21/12/2022 and 13/01/2023. They argued further that the 14 days lapsed on 20/01/2023. Even then, it was their contention, that to date the taxing master had not given the reasons they requested for. This Court would deduce from or project their arguments then that time for filing a Reference has not ripened. It has not come for reasons that the Deputy Registrar or taxing master having not given reasons to date has caused the time to freeze still. But that is in so far as their argument, which this Court does not respectfully agree with, was concerned.
28. The true position of the law is to be found by analyzing the provisions of both the *Civil Procedure Act* and the Civil Procedure Rules vis-a-vis the provisions in issue, that is, Paragraph 11 of the Advocates Remuneration Order.



29. The starting point of the analysis here is the understanding on which between the Civil Procedure Act and the Civil Procedure Rules supersedes the other. It is not in dispute that the Civil Procedure Rules constitute subsidiary legislation made pursuant to authority or power donated by Section 81 of the Civil Procedure Act. Thus, in terms of hierarchy of laws, where there is a conflict between the two, the provisions of the Civil Procedure Act prevail.
30. With that reasoning and finding in mind the Court now analyses the two relevant provisions of the legal instruments under reference. Section 3 of the Civil Procedure Rules provides:-
- “In the absence of any specific provision to the contrary, nothing in this Act shall limit or otherwise affect any special jurisdiction or power conferred or any special form or procedure prescribed by or under any other law for the time being in force.”
31. And Order 50 Rule 4 of the Civil Procedure Rules provides:-
- “except where otherwise directed by a Judge for reasons to be recorded in writing, the period between the twenty first day of December in any year and the thirteenth day of January in the year next following both days included, shall be omitted from any computation of time (whether under these Rules or any order of the court) for the amending, delivering or filing of any pleading or the doing of any other act: provided that this rule shall not apply to any application in respect of a temporary injunction.”
32. Section 3 of the Act provides that in the event of the existence of a statute which has provisions on the procedure to be followed the procedure under the Act shall not apply. Thus, whereas Order 50 Rule 4 of the Civil Procedure Rules freezes time between 21st December of every year and 13th January of every following year for certain actions as provided for under the Rules, it is clear that the provision relates to those actions stipulated in the Rules (and by extension the Act) and not of any other instrument or a law which has provided a procedure to be followed. Put differently, under Section 3 of the parent Act, the Civil Procedure Act, where there is a statute or legislation that has provided a procedure to be followed, the procedure under the Civil Procedure Act and Rules made thereunder shall not apply.
33. The above position has been reiterated in the many decisions of which this Court is persuaded. Therefore, to quote a few, in *Kimani Wanyoike vs. ECK CA 213/95* the Court of Appeal was clear that:
- “where there is a law prescribed by either a constitution or an Act of Parliament governing a procedure for the redress of any particular grievance, that procedure should be strictly followed.”
34. Additionally, in *Hezekiel Oira T/A H. Oira Advocate v Kenya Broadcasting Corporation* [2015] eKLR, the learned judge stated:
- “The Advocates Act, in my most considered view, is a complete statute in itself on matters of taxation of costs and as such, a party cannot invoke the provisions of the Civil Procedure Act or Rules made there under for purposes of challenging any decision of the taxing officer”.
35. I am fortified by the Court of Appeal decision in the case *Machira & Company Advocate vs Arthur K. Magugu* (2012) eKLR where the Court of Appeal stated:
- “Appeals require the tying of proceedings compiling of records of appeal and hearing of the same in open court. Reviews, however, would require provisions a kin to those of Section



80 of the Civil Procedure Act, of discovery of new and important matters, errors on the face of the record and so on. In our view, the Rules committee intended to avoid all that and provide for a simple and expeditious mode of dealing with the decisions on advocates bill of costs through references under Rule 11 to a judge in chambers.”

36. Also, in *George Miyare t/a Atonga Miyare & Associates Advocates v Evans Gor Semelang'o* [2018] eKLR, the learned trial judge held:

“The court also made it clear that the Advocates Act is the legal regime governing taxation of costs whether party and party or Advocate/client and that the Advocates Act is a complete statute in itself on matters of taxation of costs and as such, a party cannot invoke the provisions of the Civil Procedure Act or Rules made thereunder for purposes of challenging any decision of the taxing officer. The court was fortified by the Court of Appeal in *Machira & Co. Advocates vs. Arthur K. Magugu* [2012] eKLR where the Court of Appeal referring to the High Court decision between the same parties as was held by Hon. Justice Ringera (as he then was) stated, inter alia:

“---with regard to the advocates bill of costs, we agree with the decision of Judge Ringera in *Machira vs. Magugu* (1) that the Advocates Remuneration Order is a complete code which does not provide for appeals from the taxing officer’s decision. Rule 11 thereof provides for ventilation of grievances from such decisions through references to a Judge in chambers - the effect may be viewed as an appeal or a review but these being legal terms in respect of which different considerations apply, they should not be loosely used ---”

37. Furthermore, in *Mutanga Tea & Coffee Company Ltd Vs Shikara Limited & Another* [2015] e KLR, the Court of Appeal reiterated the foregoing as follows:

“.....This court has in the past emphasized the need for aggrieved parties to strictly follow any procedures that are specifically prescribed for resolution of particular disputes (Speaker of the National Assembly V Karume)(supra), was a 5(2) (b) applicant for stay of execution of an order of the High Court issued in Judicial Review proceedings rather than in a petition as required by the Constitution. In granting the order, the court made the often –quoted statement that:

“[W] here there is a clear procedure for the redress of any particular grievances prescribed by the Constitution or an Act of Parliament, that procedure should be strictly followed.(see also *Kones v Republic & Another exparte Kimani Wa Nyoike & 4 Others* [2008] e KLR (ER) 296).

“It is readily apparent that in those cases the Court was speaking to issues of the correct procedure rather than of the correct forum for resolution of a dispute. However, we entertain no doubt in our minds that the reasoning of the Court must apply with equal force to require an aggrieved party, where a specific dispute resolution mechanism is prescribed by the Constitution or a statute, to resort to that mechanism first before purporting to invoke the inherent jurisdiction of the High Court. (Emphasis added).

The basis for that view is first that Article 159 (2) (c) of the Constitution has expressly recognized alternative forms of dispute resolution, including reconciliation, mediation, arbitration and traditional dispute resolution mechanisms. The use of the word “including” leaves no doubt that Article (159)(2)(c) is not a closed catalogue. To the extent that the Constitution requires these forms of dispute resolution mechanisms to be promoted, usurpation of their jurisdiction by the High Court would not be promoting, but rather,



undermining a clear constitutional objective. A holistic and purposive reading of *the Constitution* would therefore entail construing the unlimited original jurisdiction conferred on the High Court by Article 165(3)(a) of *the Constitution* in a way that will accommodate the alternative dispute resolution mechanisms. (Emphasis added).

Secondly, such alternative dispute resolution mechanisms normally have the advantage of ensuring that the issues in dispute are heard and determined by experts in the area; and that the dispute is resolved much more expeditiously and in a more cost effective manner....

.....We are therefore satisfied that the learned judge did not err by striking out the appellant's suit and application which sought to invoke the original jurisdiction of the High Court in circumstances whereas the relevant statutes prescribed alternative dispute resolution mechanisms and afforded the appellant the right to access the High Court by way of appeal, which mechanisms he had refused to invoke. To hold otherwise would, in the circumstances of this appeal, be to defeat the constitutional objective behind Article 159(2)(c) and the very raison d'être of the mechanisms provided under the two Acts....." (emphasis added).

38. Flowing from the law and the reasoning above, this Court finds that the freezing of time as provided for in the Civil Procedure Rules does not apply to the time contemplated in Paragraph 11 of the Advocates Remuneration Order. It means that time for issuing the notice of objection to all or some of the items on the taxed bill of costs started running from 13/12/2022 and ended on 27/12/2022. The Applicants ought to have filed the notice by 27/12/2022. Otherwise, they needed to seek an extension of time as stipulated in Paragraph 11(4) of the Advocates Remuneration Order. Thus, as submitted by the Respondents, the notice of objection to Item 1 of the taxed bill or any other that may have been filed without leave of the court is improper on the record and of no effect in law. Further, it goes without saying that reasons having not been requested for regarding the decision of the taxing master, there is nothing to base the extension sought. In any event, the extension sought is contrary to the one provided for in the provision in issue. Thus, the prayer for to file a Miscellaneous Reference fails.
39. Similarly, the third issue regarding stay of execution against the taxed costs pending the hearing and determination of the Reference cannot stand as there is none. It is refused.
40. The upshot is that the entire application fails. It is dismissed with costs to the Respondents who opposed it. The file is closed, subject to payment of the costs of the Application herein.
41. Orders accordingly.

RULING DATED, SIGNED AND DELIVERED VIA THE TEAMS PLATFORM THIS 15TH DAY OF JANUARY, 2025.

HON. DR. IUR F. NYAGAKA

JUDGE.

